

Court No. - 37

Case :- WRIT - C No. - 49651 of 2009

Petitioner :- M/S. Sumiti Alloys Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kr. Shukla, Amarendra Nath Singh

Hon'ble R.K. Agrawal, J.

Hon'ble Shashi Kant Gupta, J.

Heard Sri Mayank Agrawal, learned counsel for the petitioner and Sri Pankaj Kumar Shukla, Advocate appearing for the respondents.

By this writ petition, the petitioner has prayed for quashing the demand notice dated 5.2.09 passed by the respondent No. 2. Learned counsel for the petitioner submits that security is being asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner submits that similar writ petition has been entertained and interim orders have been passed by this Court. Reference has been made to the order dated 23rd June, 2009 in Writ Petition No. 30582 of 2009 (**M/s Vehlina Steels & Alloys Pvt. Ltd. and another Versus Paschimanchal Vidyut Vitran Nigam Ltd. and another**).

Learned counsel for the respondents submits that in several matters identical questions are involved.

List his writ petition along with other similar matters on 26th October, 2009. Learned Standing Counsel shall give a list of cases in which similar issues are related of the year 2009.

In view of interim order as already granted in writ petition No. 30582 of 2009 as referred above it is provided without prejudice to the right and contention of the parties that until further orders of this Court the respondents are restrained from demanding additional security from the petitioner.

Order Date :- 16.9.2009

vinay

Court No. - 32

Case :- WRIT - C No. - 49651 of 2009

Petitioner :- M/S. Sumiti Alloys Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. & Ors.

Petitioner Counsel :- Mayank Agrawal

Respondent Counsel :- Pankaj Kr. Shukla, Amarendra Nath Singh

Hon'ble R.K. Agrawal, J.

Hon'ble S.C. Agarwal, J.

Sri P.K. Shukla prays for and is granted four weeks' time to file counter affidavit. Rejoinder affidavit be filed within two weeks.

Sri Mayank Agrawal states that this is a bunch matter as several cases challenging the demand of additional security has been filed.

The case is, therefore, released and it shall now be listed on its turn before the appropriate Court and shall not be treated as tied-up or part-heard to this Bench.

Order Date :- 21.1.2010

AM/-

Court No. - 40

Case :- WRIT - C No. - 49651 of 2009

Petitioner :- M/S. Sumiti Alloys Pvt. Ltd.

Respondent :- Paschimanchal Vidyut Vitran Nigam Ltd. And Ors.

Counsel for Petitioner :- Mayank Agrawal

Counsel for Respondent :- Pankaj Kr. Shukla, Amarendra Nath Singh

Hon'ble Siddhartha Varma, J.

Hon'ble Vikas Budhwar, J.

Sri Saroj Giri holding brief of Sri Mayank Agrawal learned counsel for the petitioner states that the writ petition has become infructuous and the same may be dismissed as having become infructuous.

The writ petition is, accordingly, dismissed as having become infructuous.

Interim order, if any, stands vacated.

Order Date :- 9.9.2022

PK

(Vikas Budhwar, J.) (Siddhartha Varma, J.)